

COMMITTEE ON ARTIFICIAL INTELLIGENCE & INNOVATION
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1786
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 18, Arizona Revised Statutes, is amended by adding
3 chapter 8, to read:

4 CHAPTER 8

5 ARTIFICIAL INTELLIGENCE

6 ARTICLE 1. GENERAL PROVISIONS

7 18-801. Artificial intelligence; content verification;
8 definitions

9 A. A COVERED PROVIDER SHALL INCLUDE PROVENANCE DATA IN ANY VIDEO,
10 IMAGE OR AUDIO CONTENT ~~[OR CONTENT THAT IS ANY COMBINATION OF A VIDEO, AN~~
11 ~~IMAGE OR AUDIO CONTENT]~~ THAT IS CREATED OR MATERIALLY ALTERED BY THE
12 COVERED PROVIDER'S GENERATIVE ARTIFICIAL INTELLIGENCE SYSTEM [AND THAT IS
13 AVAILABLE TO BE SHARED WITH USERS OUTSIDE OF THE GENERATIVE ARTIFICIAL
14 INTELLIGENCE SYSTEM. THIS SUBSECTION DOES NOT APPLY TO CONTENT THAT IS
15 GENERATED AS A RESULT OF AN INTERACTIVE EXPERIENCE, INCLUDING VOICE
16 ASSISTANT RESPONSES, VIRTUAL REALITY ENVIRONMENTS, AUGMENTED REALITY
17 APPLICATIONS, REAL-TIME CONVERSATIONAL ARTIFICIAL INTELLIGENCE
18 INTERACTIONS AND OTHER REAL-TIME, DYNAMIC INTERACTIONS BETWEEN A USER AND
19 A GENERATIVE ARTIFICIAL INTELLIGENCE SYSTEM].

20 B. A COVERED PROVIDER SHALL USE COMMERCIALY AND TECHNICALLY
21 REASONABLE METHODS TO MAKE THE PROVENANCE DATA DIFFICULT TO REMOVE OR
22 TAMPER WITH. THE USE OF A COMMONLY SUPPORTED TECHNICAL STANDARD FOR
23 WATERMARKING AND METADATA COMPLIES WITH THE REQUIREMENTS OF THIS
24 SUBSECTION.

25 C. THE CONTENT IS NOT CONSIDERED MATERIALLY ALTERED FOR PURPOSES OF
26 THIS SECTION IF THE ALTERATION CONSISTS OF A MINOR MODIFICATION THAT DOES
27 NOT LEAD TO SIGNIFICANT CHANGES TO THE PERCEIVED CONTENT OR MEANING OF THE
28 CONTENT.

1 D. [TO THE EXTENT THAT IT IS COMMERCIALY AND TECHNICALLY
2 REASONABLE.] A COVERED PROVIDER ~~[IS REQUIRED TO]~~ [MAY NOT] INCLUDE ANY
3 INFORMATION THAT RELATES TO AN IDENTIFIED OR REASONABLY IDENTIFIABLE
4 INDIVIDUAL IN PROVENANCE DATA THAT ~~[IS INCLUDED IN]~~ [IS IN ANY VIDEO,
5 IMAGE OR AUDIO] CONTENT CREATED OR MATERIALLY ALTERED BY THE COVERED
6 PROVIDER'S GENERATIVE ARTIFICIAL INTELLIGENCE SYSTEM [AND THAT IS SUBJECT
7 TO THE REQUIREMENTS OF THIS CHAPTER UNLESS THE COVERED PROVIDER CHOOSES TO
8 INCLUDE THE INFORMATION WHERE A USER AFFIRMATIVELY ELECTS TO INCLUDE THE
9 INFORMATION].

10 [E. THIS CHAPTER DOES NOT DO EITHER OF THE FOLLOWING:

11 1. APPLY TO ANY PRODUCT, SERVICE, INTERNET WEBSITE OR APPLICATION
12 THAT EITHER:

13 (a) EXCLUSIVELY PROVIDES NON-USER-GENERATED TELEVISION, MUSIC,
14 STREAMING, MOVIE, VIDEO GAME OR INTERACTIVE EXPERIENCES.

15 (b) PROVIDES FOR THE SALE OF GOODS OR SERVICES DIRECTLY TO
16 CONSUMERS THROUGH THE INTERNET AND ALLOWS CUSTOMERS TO BROWSE, SELECT AND
17 PURCHASE ITEMS VIRTUALLY.

18 2. REQUIRE A COVERED PROVIDER TO DISCLOSE ANY TRADE SECRET OR
19 CONFIDENTIAL OR PROPRIETARY INFORMATION ABOUT THE DESIGN OR USE OF AN
20 ARTIFICIAL INTELLIGENCE SYSTEM.]

21 ~~[F.]~~ [F.] FOR THE PURPOSE OF THIS SECTION:

22 1. "COVERED PROVIDER"[:]

23 [(a)] MEANS A PERSON OR ENTITY THAT CREATES, CODES OR OTHERWISE
24 PRODUCES A GENERATIVE ARTIFICIAL INTELLIGENCE SYSTEM THAT [HAS MORE THAN
25 ONE MILLION MONTHLY USERS AND THAT] IS PUBLICLY ACCESSIBLE WITHIN THE
26 GEOGRAPHIC BOUNDARIES OF THIS STATE TO CONSUMERS FOR PERSONAL USE.

27 [(b) DOES NOT INCLUDE ANY OF THE FOLLOWING:

28 (i) A CLOUD SERVICE PROVIDER.

29 (ii) A PROVIDER THAT DISTRIBUTES OR MAKES AVAILABLE A GENERATIVE
30 ARTIFICIAL INTELLIGENCE SYSTEM THAT IS PRIMARILY LICENSED OR SOLD FOR
31 BUSINESS TO BUSINESS PURPOSES.

32 (iii) A PRODUCT, SERVICE OR APPLICATION THAT IS PRIMARILY MARKETING
33 AND INTENDED TO FACILITATE ACCESSIBILITY FOR A PERSON WITH A DISABILITY IF
34 THE DEVELOPER TAKES REASONABLE MEASURES TO PROTECT AGAINST UNAUTHORIZED
35 USE.

36 (iv) AN INTERNET SERVICE PROVIDER.

37 (v) AN INTERNET SERVICE PROVIDER'S AFFILIATES OR SUBSIDIARIES.

38 (vi) AN INTERNET SEARCH ENGINE.]

39 2. "GENERATIVE ARTIFICIAL INTELLIGENCE SYSTEM" MEANS [TECHNOLOGY
40 THAT USES MACHINE LEARNING, INCLUDING DEEP-LEARNING MODELS, NATURAL
41 LANGUAGE PROCESSING OR OTHER COMPUTATIONAL PROCESSING TECHNIQUES OF
42 SIMILAR OR GREATER COMPLEXITY, TO GENERATE IMAGES, AUDIO, VIDEO OR OTHER
43 MEDIA][AN ARTIFICIAL INTELLIGENCE SYSTEM THAT CAN GENERATE SYNTHETIC
44 CONTENT].

45 3. "MINOR MODIFICATION" INCLUDES ALL OF THE FOLLOWING:

46 (a) CHANGING THE BRIGHTNESS, CONTRAST OR COLOR.

47 (b) SHARPENING.

1 (c) SATURATING.
2 (d) APPLYING FILTERS.
3 (e) RESIZING.
4 (f) SCALING.
5 (g) CROPPING.
6 (h) FORMAT CONVERSIONS.
7 (i) RESAMPLING.
8 (j) DENOISING.
9 (k) REMOVING BACKGROUND NOISE IN AUDIO.
10 4. "PROVENANCE DATA" MEANS DATA THAT IS EMBEDDED INTO DIGITAL
11 CONTENT~~[,]~~[OR] THAT IS INCLUDED IN THE DIGITAL CONTENT'S METADATA ~~[OR~~
12 ~~THAT IS ASSOCIATED WITH DIGITAL CONTENT]~~ TO VERIFY THE DIGITAL CONTENT'S
13 AUTHENTICITY, ORIGIN OR HISTORY OF MODIFICATION [AND THAT INCLUDES
14 GENERALLY ACCEPTED SECURITY BEST PRACTICES].
15 Sec. 2. Legislative findings
16 The legislature intends that section 18-801, Arizona Revised
17 Statutes, as added by this act, be broadly construed and applied to
18 promote the underlying purpose of the act, which is all of the following:
19 1. To protect individuals and groups of individuals from known, and
20 unknown but reasonably foreseeable, risks associated with artificial
21 intelligence.
22 2. To provide transparency regarding those risks in the
23 development, deployment or use of artificial intelligence systems.
24 3. To provide reasonable notice regarding the use of artificial
25 intelligence systems.
26 4. To protect the public from fraud or deception.
27 <<Sec. 3. Effective date
28 [This act is effective from and after February 1, 2027.]>>

29 Enroll and engross to conform
30 Amend title to conform
And, as so amended, it do pass

JUSTIN WILMETH
CHAIRMAN

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